

Warsaw, September 2, 2024

Decision

DKN.5131.33.2023

Based on Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2024, item 572) in connection with Article 7(1) and (2), Article 60, Article 102(1)(1) and (3) of the Act on the Protection of Personal Data (Journal of Laws of 2019, item 1781) and Article 57(1)(a) and (h), Article 58(2)(e) and (i), Article 83(1) and (2), Article 83(4)(a) in connection with Article 33(1) and Article 34(1), (2) and (4) as well as Article 83(5)(a) in connection with Article 5(1)(a), Article 6(1) and Article 9(1) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of May 4, 2016, p. 1, OJ EU L 127 of May 23, 2018, p. 2 and OJ EU L 74 of March 4, 2021, p. 35), hereinafter referred to as the "Regulation 2016/679", after conducting an ex officio administrative procedure regarding the violation of personal data protection regulations by the National Prosecutor's Office based in Warsaw at Postępu 3, the President of the Personal Data Protection Office,

finding a violation by the National Prosecutor's Office based in Warsaw at Postępu 3, of the provisions:

- a) Article 6(1) and Article 9(1) of Regulation 2016/679, consisting of the disclosure on (...), without legal basis, during a press conference by the National Prosecutor's Office of personal data of the injured party, contained in the judgment of the District Court (...) of (...), case reference: (...), which resulted in a violation of Article 5(1)(a) of Regulation 2016/679, i.e. the "lawfulness principle",
- b) Article 33(1) of Regulation 2016/679, consisting of the failure to notify the President of the Personal Data Protection Office of the personal data breach that occurred (...) during the press conference of the National Prosecutor's Office without undue delay, no later than 72 hours after the breach was identified,
- c) Article 34(1) and (2) of Regulation 2016/679, consisting of the failure to notify without undue delay the person whose data was disclosed by the National Prosecutor's Office during the press conference (...),
 - 1) imposes on the National Prosecutor's Office an administrative fine of 85,000 PLN (in words: eighty-five thousand zlotys);
 - 2) orders the National Prosecutor's Office to notify, within 3 days from the date of receipt of this decision, the person whose personal data was disclosed without legal basis during the press conference (...) of the breach of their personal data protection in order to provide the information required under Article 34(2) of Regulation 2016/679, i.e.:
 - a) a description of the nature of the personal data breach;
 - b) the name and contact details of the data protection officer or the designation of another contact point from which more information can be obtained;
 - c) a description of the possible consequences of the personal data breach, taking into account the categories of individuals and the scope of data affected by the breach;
 - d) a description of the measures taken or proposed by the controller to address the breach – including measures to mitigate its possible negative effects, taking into account the categories of individuals and the scope of data affected by the breach.

Justification

To the President of the Personal Data Protection Office, hereinafter referred to as the "President of UODO" or "the authority", (...) information was received from a third party regarding a breach of personal data protection committed by the National Prosecutor's Office based in Warsaw at Postępu 3 (hereinafter also referred to as "the Administrator"). This breach consisted of the disclosure during a press conference (...) by the National Prosecutor's Office of personal data of the injured party,

contained in the judgment of the District Court (...) of (...), case reference: (...).

The President of UODO, as a result of the conducted explanatory proceedings (reference: (...)) and administrative proceedings (reference: DKN.5131.33.2023), initiated ex officio (...) regarding the violation by the Administrator of the provisions of Article 5(1)(a), Article 6(1), Article 9(1), Article 33(1) and Article 34(1) and (2) of Regulation 2016/679, established the following factual state.

1. (...) a press conference of the National Prosecutor's Office took place, attended by a representative of the National Prosecutor's Office (Director of the Office of the National Prosecutor's Office – Prosecutor Tomasz Szafrński) and the Prosecutor General (Minister of Justice – Zbigniew Ziobro). This conference was dedicated to personnel decisions that took place in the District Prosecutor's Office (...) in connection with the case of assault (...). During the press conference, the National Prosecutor's Office disclosed personal data of a person with the status of an injured party in the criminal proceedings and information regarding the factual state of the case contained in the judgment of the District Court (...) of (...), case reference: (...). Among the disclosed data were her name and surname as well as information that she is a victim of assault (...) and the fact that she had been granted the status of an injured party. Information about her health condition was also disclosed, as she had suffered health impairment – (...). Furthermore, prior to the aforementioned statement by the prosecutor

National Prosecutor's Office, which disclosed the aforementioned information, Attorney General - Minister of Justice indicated that the attackers (...). Thus, during the press conference, it was also revealed that the status of a victim was granted in the criminal case (...). The recording of the aforementioned conference is available at (...).

2. The National Prosecutor's Office is the administrator of the data disclosed during the conference referred to in point 1, within the meaning of Article 4 point 7 of Regulation 2016/679. The disclosed personal data of the victim in the mentioned case originated from the case files and were processed by the National Prosecutor's Office in connection with the analysis preceding the decision regarding the submission by the Attorney General of an extraordinary complaint against the issued ruling.

3. The National Prosecutor's Office did not report a breach of personal data protection to the President of the Personal Data Protection Office (UODO), nor did it notify the individual whose data is concerned about this breach.

4. The President of UODO, in letters dated August 9 and 10, 2023, called upon the Administrator to provide explanations regarding the aforementioned event, in which he inquired, among other things, whether the Administrator had analyzed the event in terms of a breach of the rights or freedoms of the individual (the victim) to assess whether there had been a breach of data protection resulting in the obligation to report the breach of personal data protection to the President of UODO and to notify the individual whose data is concerned about such a breach. The National Prosecutor's Office, in a letter dated August 29, 2023, indicated that "(...) due to the lack of appropriate grounds, the event described in the notification was not subject to analysis by the data administrator of the National Prosecutor's Office, in the context referred to in the letter dated August 10, 2023."

5. The Administrator, in a letter dated October 27, 2023, indicated that quote: "(...) [t]he personal data to which the notification of the initiation of proceedings pertains constituted part of the ruling issued on (...) in criminal case file no. (...) of the District Court (...), as well as its justification.

The mentioned fragments of the judgment and its justification were cited to illustrate the fundamental discrepancy between the crimes attributed to the convicted individuals and those established by the court and reflected in the factual findings in the justification. Moreover, this data had already been previously made public within the framework of the ongoing public court proceedings, both during the evidentiary activities conducted by the court and the public announcement of the judgment.

Importantly, the personal data of the victim in the mentioned case were processed by the National Prosecutor's Office in connection with the analysis preceding the decision regarding the submission by the Attorney General of an extraordinary complaint against the issued ruling. The processing of data in connection with criminal proceedings is generally subject to the regulations contained in the Act of December 14, 2018, on the protection of personal data processed in connection with the prevention

and combating of crime (Journal of Laws of 2023, item 1206); however, according to Article 3 point 1 of this Act, data contained in files or records maintained under the legal acts referred to in this provision, including - which is significant for this case - under the Code of Criminal Procedure and personal data processed under the Act of January 28, 2016 - Law on the Prosecutor's Office (Journal of Laws of 2024, item 390) are excluded from its scope of application. Nevertheless, this data is not excluded from legal protection, as the requirements for its processing and disclosure arise from both the Code of Criminal Procedure and the Law on the Prosecutor's Office. In this case, the legal basis for providing information that includes fragments constituting part of the criminal case files, the judgment, and its justification was Article 12 § 2 of the Law on the Prosecutor's Office, which authorizes the provision of information to the media not only from the ongoing preparatory proceedings but also concerning the activities of the prosecutor's office, which, it is worth noting, includes the prosecution of crimes and safeguarding the rule of law, including analyzing court case files to make decisions regarding the submission of extraordinary appeals by the Attorney General. The legislator excluded only classified information from the scope of this information that the prosecutor acting under the cited provision is authorized to disclose. However, the administrative proceedings notified do not concern such information. Considering the aforementioned arguments, it must be stated that there has been no violation of the provisions on the protection of personal data, including those related to their processing; therefore, taking actions aimed at clarifying something that did not occur was and is unfounded. Regardless of the above, it should be noted that the President of the Personal Data Protection Office is not competent to perform supervisory activities regarding personal data processed by common organizational units of the prosecutor's office in the framework of performing tasks specified in Article 2 of the Law on the Prosecutor's Office. This follows directly from Article 1 point 3 of the Act on the protection of personal data processed in connection with the prevention and combating of crime. The manner of exercising supervision over the processing of personal data in the framework of performing tasks specified in Article 2 of the Law on the Prosecutor's Office, of which the administrators are common organizational units of the prosecutor's office, is comprehensively defined by Article 191a of the Law on the Prosecutor's Office, amended by the Act of July 7, 2023, amending the Act - Code of Civil Procedure, the Act - Law on the Organization of Common Courts, the Act - Code of Criminal Procedure, and certain other acts (Journal of Laws, item 1860). The above is confirmed both in the decisions of the President of the Personal Data Protection Office, including the decision of (...), no. (...), and the decision of (...), no. (...), as well as in the judgment of the Administrative Court in Warsaw dated October 5, 2020, case file II SA/Wa 2620/19.

in the justification of which it was correctly indicated that unauthorized (conducted without a legal basis) would be any substantive actions taken by the President of the Personal Data Protection Office in the context of supervising the processing of personal data by public prosecutor's offices in the performance of their tasks specified in Article 2 of the Law on the Prosecutor's Office. There are no grounds to assume that a violation of personal data protection regulations occurred, and the exclusion of the President of the Personal Data Protection Office's jurisdiction regarding the supervision of data processing by prosecutor's offices in the performance of their statutory tasks excludes the existence of an obligation on the part of the data controller to make the notification referred to in Article 33(1) of Regulation 2016/679 and the notification specified in Article 34(1) of that regulation, and consequently, it is obvious that the consideration—due to their non-fulfillment—of a violation of the cited provisions by him.

6. The Administrator, in a letter dated March 12, 2024, responding to the request of the President of the UODO to indicate on whose authority Prosecutor Tomasz Szafrąński appeared during the aforementioned press conference and in what procedural role the National Prosecutor's Office participated, indicated that "(...) the relevant information is held by Prosecutor Dariusz Barski, former Attorney General Mr. Zbigniew Ziobro, and former director of the Presidential Office of the National Prosecutor's Office Mr. Tomasz Szafrąński. The Presidential Office is currently unable to obtain information from any of the aforementioned persons." Furthermore, it was indicated that "according to Article 12 § 2 of the Act (...) Law on the Prosecutor's Office, information about the activities of the prosecutor's office is provided to the media by the Attorney General, the head of the organizational unit

of the prosecutor's office, or an authorized prosecutor. The organizational unit, which is the National Prosecutor's Office, therefore provides information about its activities through its head or an authorized prosecutor. During press conferences organized by the National Prosecutor's Office, it is the entity conveying information regarding criminal proceedings or its other activities." In a letter dated April 11, 2024, the Administrator repeated the explanations regarding the role of the National Prosecutor's Office in the aforementioned press conference, simultaneously indicating that he is unable to specify, as of the date of the response, who authorized Prosecutor Tomasz Szafranski to provide information to the media regarding case file no: (...) (due to the absence of the aforementioned prosecutor at work). Furthermore, the Administrator referred to the content of Article 191a of the Law on the Prosecutor's Office, indicating that the President of the UODO is not the competent supervisory authority in this matter.

7. In a letter dated May 13, 2024, the Administrator indicated that the information disclosed during the press conference was processed by the National Prosecutor's Office in connection with the analysis preceding the decision regarding an extraordinary appeal against the judgment rendered, as part of the statutory tasks of the prosecutor's office. "The processing of data took place in connection with a criminal proceeding, which is generally covered by the regulations contained in the Act of December 14, 2018, on the protection of personal data processed in connection with the prevention and combating of crime (...). Supervision over the processing of personal data in the performance of tasks specified in Article 2 of the Law on the Prosecutor's Office, as directly stated in Article 1(3) of the Act (...), remains outside the jurisdiction of the President of the Personal Data Protection Office. The manner of exercising supervision over the processing of personal data in the performance of tasks specified in Article 2 of the Law on the Prosecutor's Office is regulated by Article 191a of this Act. According to the provisions of Article 191a § 1(3) of the Law on the Prosecutor's Office, supervision over the processing of personal data, of which the administrator is the National Prosecutor's Office, is performed by the National Prosecutor." The Administrator also referred to the positions of the President of the UODO expressed in matters (...), (...), (...), in which the authority deemed itself incompetent.

The Administrator also indicated that "(...) the explanations provided by the National Prosecutor's Office, including in the letter dated October 17, 2023, (...), clearly indicate that the President of the Personal Data Protection Office, in the scope covered by this matter, is not competent to exercise supervision over the processing of personal data, as it occurred in the context of performing tasks specified in Article 2 of the Law on the Prosecutor's Office, and directing further requests containing demands for explanations should be considered incomprehensible and lacking a basis for their realization (...)."

8. The case files contain printouts of press articles describing the press conference organized in connection with personnel changes in the District Prosecutor's Office (...) and the very disclosure of personal data of the victim: a) (...); b) (...); c) (...); d) (...).

After reviewing all the evidence gathered in the case, the President of the UODO considered the following. The subject of this proceeding is the violation by the Administrator of the provisions of Article 5(1)(a), Article 6(1), Article 9, Article 33(1), and Article 34(1) and (2) of Regulation 2016/679, in connection with the disclosure during the press conference (...) by the National Prosecutor's Office of the personal data of the victim, contained in the judgment of the District Court (...) dated (...), case file no. (...), and subsequently failing to report the violation of personal data protection to the President of the UODO, as well as failing to notify the person to whom the data pertains.

I. In assessing the subject event, the President of the UODO examined whether the above disclosure of the personal data of the victim at the aforementioned press conference constituted a violation of personal data protection, as well as whether the President of the UODO is the competent supervisory authority to verify the compliance with the provisions of Regulation 2016/679 by the administrator of that data (the National Prosecutor's Office) in connection with the aforementioned event. The President of the UODO also examined whether the disclosure of the data in question Personal data was among the tasks of the prosecutor's office, as mentioned in Articles 2 and 3 of the

Act of January 28, 2016, on the Prosecutor's Office, and thus whether the provisions of Regulation 2016/679 or the Act of December 14, 2018, on the protection of personal data processed in connection with the prevention and combating of crime, hereinafter referred to as "the 2018 Data Protection Act," will apply to its assessment, and whether it was lawful.

The President of the Personal Data Protection Office (UODO) also conducted an analysis of legal provisions to determine the appropriate entity as the administrator of the personal data disclosed during the press conference of the National Prosecutor's Office on (...). During the press conference, a prosecutor from the National Prosecutor's Office read a fragment of a court judgment (issued by a criminal court, with the proceedings lawfully concluded), thereby disclosing the personal data of the victim. The files had previously been analyzed by the Attorney General to assess the legitimacy of using an extraordinary appeal, i.e., a cassation complaint to the Supreme Court. The person entitled to submit such a complaint includes, among others, the Attorney General, pursuant to Article 89 § 2 of the Act of December 8, 2017, on the Supreme Court (Journal of Laws of 2024, item 622). The National Prosecutor's Office provides support to the Attorney General and the National Prosecutor (Article 17 § 1 of the Act on the Prosecutor's Office). According to Article 13 § 6 of the Act on the Prosecutor's Office, common organizational units of the prosecutor's office are administrators of data processed in the course of performing their tasks, excluding the data referred to in § 5. Furthermore, under Article 16 of the Act on the Prosecutor's Office, the common organizational units of the prosecutor's office are: the National Prosecutor's Office, regional prosecutor's offices, district prosecutor's offices, and local prosecutor's offices. Thus, the National Prosecutor's Office should be considered the administrator of the data disclosed during the aforementioned conference.

At this point, it should be noted that due to the very process of data processing, the manner and circumstances in which this data was disclosed (the press conference of representatives of the prosecutor's office), the stage of the case from which the disclosed information originated (concluded court proceedings in a criminal case), as well as the status of the person in the proceedings (the victim) whose data was disclosed, means that in this case, the President of the UODO retains his competencies as a supervisory authority, and the provisions of Regulation 2016/679 will apply, rather than the 2018 Data Protection Act, which will be discussed in more detail later in this decision.

(...) a press conference of the National Prosecutor's Office was held concerning personnel decisions made in the District Prosecutor's Office (...) in connection with the case of an assault on (...). The assault took place during (...) in (...) where an attempt was made to (...). The District Court (...) convicted the person responsible for the aforementioned attack of (...). During the conference, the prosecutor of the National Prosecutor's Office described what he believed were irregularities in the already closed proceedings (before the court), citing fragments of the files, including the name and surname of the victim of the assault (...) and the very description of the course of the assault, information that the victim suffered health damage, and moments earlier, the Attorney General - Minister of Justice provided information, (...) (and this was the reason for the assault and the motive for the actions of the assailants). The purpose of the press conference, during which the personal data of the victim was disclosed, was to inform the public about the reasons for the personnel decisions already made in the aforementioned prosecutor's office, resulting from the assessment of the work of the subordinate prosecutor in the service path of the Attorney General. Therefore, this is not a task related to prosecuting crimes and upholding the rule of law, in the sense of Article 2 or Article 3 of the Act on the Prosecutor's Office, and thus the provisions of Regulation 2016/679 will apply, rather than the 2018 Data Protection Act. At the same time, due to the specific positioning of the prosecutor's office within the structure of state power (it is subordinate to the minister – i.e., an executive authority, not a judicial one; see Article 1 § 2 of the Act on the Prosecutor's Office), it is not covered by the exclusion referred to in Article 55 § 3 of Regulation 2016/679.

Furthermore, it should be noted that in the case of disclosure by organizational units of the prosecutor's office of information derived from the files of concluded criminal proceedings, the procedure for this disclosure is significant (thus the process itself, not the source of these information). It directly influences the choice of provisions under which the given event should be assessed. The

President of the UODO made a similar assessment in the decision of March 14, 2023, ref. DKN.5131.45.2022, in which he stated that the improper disclosure by an organizational unit of the prosecutor's office of information contained in concluded criminal proceedings, constituting personal data, under the Act of September 6, 2001, on access to public information (Journal of Laws of 2022, item 902), hereinafter referred to as "the Public Information Act," should be assessed based on the provisions of Regulation 2016/679, rather than the 2018 Data Protection Act. The Administrative Court in Warsaw, in its judgment of November 6, 2023, ref. II SA/Wa 996/23, agreed with this position of the authority, dismissing the complaint against the aforementioned decision. The court assessed the aforementioned decision of the President of the UODO as lawful, simultaneously indicating that "the President of the UODO applied the correct provisions in the case (...)".

In the opinion of the President of the UODO, in the manner described above, not only the name and surname (...) were disclosed, but also data related to the event itself, which, due to the context and circumstances, clearly indicate that she is a victim of an assault (and against what background), a person harmed in a criminal case, and also allow for the identification of her (...), as well as information that she suffered health damage. According to Regulation 2016/679, (...) belong to a special category of data and as such are subject to enhanced protection under Article 9 § 1 of the aforementioned legal act.

II. The National Prosecutor's Office, as a public entity, is obliged to act based on the law and within its limits, pursuant to Article 7 of the Constitution of the Republic of Poland.

April 2, 1997 (Journal of Laws No. 78, item 483, as amended).

The disclosure of personal data of the injured party, in such a broad scope, including data of a special category, should be based on a legal basis. This means that when analyzing the premises of the above disclosure (understood in accordance with Article 4 point 2 of Regulation 2016/679 as a form of processing personal data), one must take into account the content of Article 6 paragraph 1 of Regulation 2016/679 in relation to so-called ordinary data (such as name, surname, information contained in the judgment) and Article 9 paragraphs 1 and 2 of Regulation 2016/679 in relation to special categories of data (such as information about (...)). Furthermore, the premises for data processing should also correlate with the principles defined in Article 5 paragraph 1 of Regulation 2016/679, particularly with the principle of lawfulness, fairness, and transparency expressed in Article 5 paragraph 1 letter a) of Regulation 2016/679, and the administrator should be able to demonstrate compliance with these principles (Article 5 paragraph 2 of Regulation 2016/679).

According to Article 6 paragraph 1 of Regulation 2016/679, processing is lawful only if – and to the extent that – at least one of the following conditions is met: the data subject has given consent to the processing of their personal data for one or more specific purposes (letter a); processing is necessary for the performance of a contract to which the data subject is a party or for taking steps at the request of the data subject prior to entering into a contract (letter b); processing is necessary for compliance with a legal obligation to which the controller is subject (letter c); processing is necessary to protect the vital interests of the data subject or another natural person (letter d); processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller (letter e); processing is necessary for the purposes of legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child (letter f). The first paragraph letter f) does not apply to processing carried out by public authorities in the performance of their tasks.

In the case of special categories of data, such as (...), it should be emphasized that Regulation 2016/679 prohibits their processing (Article 9 paragraph 1), unless one of the conditions specified in Article 9 paragraph 2 of Regulation 2016/679 applies. According to Article 9 paragraph 1 of Regulation 2016/679, the processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, trade union membership, as well as the processing of genetic data, biometric data for the purpose of uniquely identifying a natural person, or data concerning health, sexuality, or sexual orientation of that person is prohibited. According to Article 9 paragraph 2 of Regulation 2016/679, the provision of paragraph 1 does not apply if one of the following conditions is met: the data

subject has given explicit consent to the processing of those personal data for one or more specific purposes, unless Union or Member State law provides that the data subject may not withdraw the prohibition referred to in paragraph 1 (letter a); processing is necessary for compliance with legal obligations and for the exercise of specific rights by the controller or the data subject in the field of employment law, social security, and social protection, provided that it is permitted by Union law or Member State law, or by a collective agreement under the law of the Member State providing appropriate safeguards for the fundamental rights and interests of the data subject (letter b); processing is necessary to protect the vital interests of the data subject or another natural person, and the data subject is physically or legally incapable of giving consent (letter c); processing is carried out in the course of legitimate activities with appropriate safeguards by a foundation, association, or other not-for-profit body with political, philosophical, religious, or trade union aims, provided that the processing relates solely to members or former members of the body or to persons who have regular contact with it in connection with its purposes and that the personal data are not disclosed outside that body without the consent of the data subjects (letter d); processing concerns personal data which are obviously made public by the data subject (letter e); processing is necessary for the establishment, exercise, or defense of legal claims or for the courts in the administration of justice (letter f); processing is necessary for reasons of substantial public interest, based on Union or Member State law which is proportionate to the aim pursued, does not undermine the essence of the right to data protection, and provides for appropriate and specific measures to safeguard the fundamental rights and interests of the data subject (letter g); processing is necessary for health care or occupational medicine, for the assessment of the working capacity of an employee, for medical diagnosis, for the provision of health or social care or treatment, or for the management of health or social care systems and services based on Union or Member State law or pursuant to a contract with a health professional and subject to the conditions and safeguards referred to in paragraph 3 (letter h); processing is necessary for...

****Regarding Public Interest Considerations****

in the field of public health, such as protection against serious cross-border health threats or ensuring high standards of quality and safety in healthcare and medicinal products or medical devices, based on Union law or the law of a Member State, which provide appropriate, specific measures to protect the rights and freedoms of individuals whose data is concerned, in particular professional secrecy (lit. i); processing is necessary for archiving purposes in the public interest, for scientific or historical research, or for statistical purposes in accordance with Article 89(1), based on Union law or the law of a Member State, which are proportional to the designated purpose, do not undermine the essence of the right to data protection, and provide appropriate, specific measures to protect the fundamental rights and interests of the data subject (lit. j).

At this point, it should be noted that the National Prosecutor's Office, in its statement dated October 27, 2023, indicated that the legal basis for the disclosure of personal data of the victim was "(...) Article 12 § 2 of the Prosecutor's Law, which authorizes the transfer of information to the media not only from ongoing preparatory proceedings but also concerning the activities of the prosecutor's office, whose tasks, it is worth noting, include prosecuting crimes and upholding the rule of law, including analyzing court case files to make decisions regarding the filing of extraordinary appeals by the Attorney General. The legislator excluded only classified information from the scope of this information that the prosecutor acting under the cited provision is authorized to make public." According to Article 12 § 2 of the Prosecutor's Law, the Attorney General and the heads of organizational units of the prosecutor's office may personally provide the media, or authorize another prosecutor for this purpose, with information from ongoing preparatory proceedings or concerning the activities of the prosecutor's office, excluding classified information, taking into account the important public interest.

The above norm, while allowing for the disclosure of information by an organizational unit of the prosecutor's office, simultaneously specifies the circumstances under which this may occur, i.e., the information should relate to ongoing preparatory proceedings or the activities of the prosecutor's office, provided there is an important public interest in doing so. Meanwhile, the information disclosed during the press conference on (...) came from a concluded proceeding, resolved by a common court (a final

court judgment was issued), thus it was not the preparatory proceeding referred to in the aforementioned provision of the Prosecutor's Law.

Analyzing the second condition indicated in Article 12 § 2 of the Prosecutor's Law, it is necessary to consider what is meant by the concept of the activities of the prosecutor's office. At this point, it should be noted that according to Article 2 of the Prosecutor's Law, the prosecutor's office performs tasks related to prosecuting crimes and upholding the rule of law. According to Article 3 § 1 of the aforementioned law, the duties specified in Article 2 are performed by the Attorney General, the National Prosecutor, and other deputies of the Attorney General, as well as the prosecutors subordinate to them, through: 1) conducting or supervising preparatory proceedings in criminal cases and performing the function of a public prosecutor before the courts; 2) filing civil lawsuits and submitting applications and participating in civil court proceedings, in matters of labor law and social security, if required to protect the rule of law, social interest, property, or the rights of citizens; 3) taking measures provided for by law aimed at the proper and uniform application of the law in judicial, administrative, misdemeanor proceedings, and in other proceedings provided for by the law; 4) supervising the execution of decisions on temporary detention and other decisions on deprivation of liberty; 5) conducting research on issues of crime and its prevention and combating, and cooperating with entities referred to in Article 7(1)(1), (2), and (4)-(8) of the Act of July 20, 2018, on Higher Education and Science (Journal of Laws of 2023, item 742), regarding research on issues of crime, its combating and prevention, and control; 6) collecting, processing, and analyzing data, including personal data, in information systems, originating from proceedings conducted or supervised under the law and from participation in judicial, administrative, misdemeanor proceedings, or other proceedings provided for by the law, transmitting data and results of analyses to the appropriate authorities, including authorities of another state, if provided for by law or an international agreement ratified by the Republic of Poland; 7) appealing to the court against unlawful administrative decisions and participating in court proceedings regarding the legality of such decisions; 8) coordinating activities related to the prosecution of crimes or fiscal offenses conducted by other state authorities; 9) cooperating with state authorities, state organizational units, and social organizations in preventing crime and other violations of the law; 10) cooperating with the Head of the National Criminal Information Center in the scope necessary to fulfill its statutory tasks; 11) cooperating and participating in actions undertaken by international or supranational organizations and international teams operating under international agreements, including agreements establishing international organizations ratified by the Republic of Poland; 12) reviewing draft laws.

normative acts; 13) cooperation with organizations associating prosecutors or employees of the prosecutor's office, including co-financing joint research or training projects; 14) undertaking other activities specified in the statutes. In the opinion of the President of the Personal Data Protection Office (UODO), the disclosure of personal data of the victim, which occurred (...), cannot be considered information concerning the activities of the prosecutor's office within the meaning of Article 2 or Article 3 of the Law on the Prosecutor's Office. The implementation of these tasks does not require the public Administrator to disclose (e.g., during press conferences) personal data of the parties to proceedings concluded with a final court judgment, including victims. Moreover, individuals granted the status of a victim should be particularly protected by the prosecutor's office units.

Furthermore, the aforementioned provision also specifies who may disclose information in this manner. According to the content of Article 12 § 2 of the Law on the Prosecutor's Office, it is the Prosecutor General and the heads of organizational units of the prosecutor's office who may personally provide information to the media or authorize another prosecutor to disclose information from ongoing preparatory proceedings or from the activities of the prosecutor's office. It should be emphasized that the President of UODO has requested the Administrator three times to indicate in what capacity and by whose authorization Prosecutor Tomasz Szafrąński appeared during the relevant press conference. The responses received by the President of UODO indicate that the information in this regard is held by "Prosecutor Dariusz Barski, former Prosecutor General (...) and former director of the Presidential Office of the National Prosecutor's Office, Prosecutor Tomasz Szafrąński. The Presidential Office is currently unable to obtain information from any of the

aforementioned individuals" (letter dated March 12, 2024) or "determining who authorized the prosecutor providing information to the media regarding case file no. (...) of the District Court (...) will possibly be possible no earlier than the second half of April this year. (...)" (letter dated April 11, 2024). In a letter dated May 13, 2024, the Administrator, citing the lack of competence of the President of UODO regarding oversight of the prosecutor's office, refused to provide a response in this regard.

At this point, it is important to note the content of Article 12 § 5 of the Law on the Prosecutor's Office, according to which the liability of the persons referred to in § 1 and 2 is subject to the provisions of Articles 119-121 of the Act of June 26, 1974 - Labor Code (Journal of Laws of 2023, item 1465, as amended), hereinafter referred to as the "Labor Code." Therefore, a person who has caused damage to a third party may be liable for the damage caused in an amount not exceeding the amount of three months' salary due to them on the day the damage was caused (Article 119 of the Labor Code). However, it should be emphasized that the decision in question is related to the administrative liability borne by the Administrator for violating the provisions of Regulation 2016/679. The Administrator has the option to apply legal measures that allow them to seek legal and financial liability – particularly in civil law recourse proceedings, or by holding the person responsible for violating data protection regulations criminally liable for their violation. The President of UODO is of the opinion that to ensure effective protection of personal data, effective mechanisms for seeking accountability for their violation by administrators are necessary, including in relation to the employees of the administrator. However, this liability should be pursued through the appropriate procedures mentioned above.

It should be emphasized that Article 12 § 2 of the Law on the Prosecutor's Office cannot be considered a legal basis for disclosing personal data, especially since the Administrator at no stage of the proceedings conducted before the President of UODO demonstrated a significant public interest that would justify the disclosure of personal data of the victim. It should also be noted that the disclosure of the victim's data had no added value, was unnecessary in the context of the purpose for which the press conference on (...) was convened, which further confirms that it occurred without a legal basis, resulting in a violation of the rights or freedoms of the individual to whom the data pertains.

At this point, it is important to emphasize that the National Prosecutor's Office, as a public authority, a law enforcement agency tasked with enforcing compliance with the law, should undoubtedly adhere to the law itself, and thus also protect information about the individual who has been granted the status of a victim in a given case. (...) obtained the status of a victim in criminal proceedings within the meaning of Article 49 § 1 of the Act of June 6, 1997, Criminal Procedure Code (Journal of Laws of 2024, item 37, as amended), i.e., it was determined that there was a direct violation or threat to their legal interest by a crime.

In analyzing the disclosure of personal data in question, the President of UODO also considered whether it constituted public information. However, the victim was not a person holding a public office, but rather a victim of a crime (established by a final court judgment).

Referring to the position of the National Prosecutor's Office expressed in the letter dated October 27, 2023, in which the Administrator referred to the decisions of the President of UODO from (...), case no. (...), and from (...), case no. (...), as well as the judgment of the Administrative Court in Warsaw of October 5, 2020, case no. II SA/Wa 2620/19, as justification for asserting that the President of UODO is not the supervisory authority competent to assess the event in question in the context of the violation of personal data protection and the provisions on personal data protection, it should be noted that the authority does not share this position. The indicated by...

The Administrator's decisions and judgment pertain to proceedings conducted in matters initiated by a submitted complaint, and not to proceedings conducted ex officio in connection with the occurrence of a breach of personal data protection. Furthermore, the contested disclosure of data is not related to combating and preventing crime, as was the case in the matters in which the aforementioned decisions and judgment were issued, and is assessed, as already demonstrated above, based on the provisions of Regulation 2016/679, and not the Personal Data Protection Act of 2018, and therefore there can be no question of a lack of competence of the President of the Personal Data Protection Office (UODO) as a supervisory authority in this regard.

In response to the Administrator's arguments contained in the letter dated May 13, 2024, in which he referred to three cases ((...)), forwarded by the President of UODO according to jurisdiction to the supervisory authority indicated in Article 191a § 1 of the Prosecutor's Law, it should be noted that the aforementioned cases concerned breaches of personal data protection in organizational units of the prosecution, subject to reporting and assessment based on the provisions of the Personal Data Protection Act of 2018. Due to the amendment of the provisions of the Prosecutor's Law, as of December 14, 2023, the President of UODO is no longer the competent supervisory authority in the cases specified in Article 191a of the Prosecutor's Law. However, it should be emphasized again that the matter at hand does not concern a breach of the provisions of the 2018 Act, but rather the provisions of Regulation 2016/679. This means that the President of UODO retains full competence in assessing the matter at hand.

Regarding the Administrator's assertion contained in the letter dated October 27, 2023, in which he stated that "[t]he data has already been made public in the course of the ongoing public court proceedings, both during the evidentiary activities conducted by the court and the public announcement of the judgment," it should be pointed out that the publicity of data does not mean their universal availability. The publicity of data at a specific moment (e.g., during a hearing, at the time of announcing a judgment) for a specific group of people does not mean that such data can be disclosed to an unlimited circle of individuals, as was the case during the conference broadcast on television and the Internet on (...). The publication or recording of the hearing (announcement of the judgment), e.g., in the form of a recording of the court hearing, requires the court's consent (cf. Article 357 and Article 358 of the Code of Criminal Procedure), and thus there cannot be any voluntary action by the representative of law enforcement authorities in this regard.

In light of the above, the disclosure of personal data of the victim during the press conference on (...) occurred without legal basis, and thus in violation of Article 6(1) and Article 9(1) of Regulation 2016/679. Consequently, there was a breach of the principle of lawfulness, fairness, and transparency [Article 5(1)(a) of Regulation 2016/679].

III. According to Article 33(1) of Regulation 2016/679, in the event of a breach of personal data protection, the administrator shall without undue delay – where feasible, no later than 72 hours after becoming aware of the breach – report it to the supervisory authority competent under Article 55, unless it is unlikely that the breach will result in a risk to the rights or freedoms of natural persons. For a report submitted to the supervisory authority after 72 hours, an explanation of the reasons for the delay shall be attached.

Regarding the rights or freedoms of individuals affected by the breach, it should be noted that according to Article 34(1) of Regulation 2016/679, if a breach of personal data protection is likely to result in a high risk to the rights or freedoms of natural persons, the administrator shall without undue delay notify the data subject of such a breach. The notification referred to in paragraph 1 of this article shall describe in clear and plain language the nature of the personal data breach and shall contain at least the information and measures referred to in Article 33(3)(b), (c), and (d) (paragraph 2).

Reporting breaches of personal data protection by administrators constitutes an effective tool contributing to a real improvement in the security of personal data processing. By reporting a breach to the supervisory authority, administrators inform the President of UODO whether, in their assessment, there is a high risk of infringement of the rights or freedoms of the data subjects and – if such a risk exists – whether they have provided the relevant information to the individuals affected by the breach. In justified cases, they may also provide information that notification is not necessary in their opinion due to the fulfillment of the conditions specified in Article 34(3)(a) – (c) of Regulation 2016/679. The President of UODO verifies the assessment made by the administrator and may – if the administrator has not notified the data subjects – request such notification from them. Reports of breaches of personal data protection allow the supervisory authority to respond appropriately to mitigate the effects of such breaches, as the administrator has an obligation to take effective measures to protect individuals and their personal data, which on one hand allows for the assessment of the effectiveness

of existing solutions, and on the other hand, the evaluation of modifications and improvements aimed at preventing irregularities similar to those covered by the breach.

In the opinion of the President of UODO, the event in question (the personal data of the victim, including special categories of her personal data, were disclosed in a public forum during the conference, including on television and the Internet, and thus to an unspecified large number of people) constitutes a breach of personal data protection, resulting in a high risk of infringement of the rights or freedoms of the person affected by it. This creates an obligation on the part of the Administrator.

implementation of the provisions of Article 33(1) and Article 34(1) of Regulation 2016/679. The National Prosecutor's Office, through its actions, has exposed the individual whose data was subject to a breach of personal data protection to an infringement of their personal rights, and consequently to secondary victimization. The disclosed information about the victim facilitates the identification of this person. The name and surname, as well as information regarding the court case ((...)), provide an unlimited circle of individuals access to her personal data due to the fact that this conference was broadcast on television and made public. This means that individuals with access to this information and the Internet can obtain a significantly broader range of information about this person. This increases the likelihood of unequivocally identifying this person, but also raises the level of potential consequences (material and non-material damages) for this person, thus increasing the risk of the severity of the consequences for this individual. It is worth mentioning at this point (...) that the risk of infringement of this person's rights or freedoms may have already materialized. (...) Therefore, the risk may have materialized, but it cannot be ruled out that in the future, the form of further materialization of this risk may be different.

In this case, it should be emphasized again that there has been a breach of personal data protection concerning one individual, resulting in a high risk of infringement of their rights or freedoms due to the scope of the breached personal data (data of a special category in the form of (...)), the type, and the context of the breach – as information about an individual recognized as a victim in criminal proceedings, who was attacked and whose (...) was publicized through the disclosure of her personal data during the conference on (...). As indicated by Guidelines 9/2022[1], a breach of personal data protection can potentially lead to a number of negative consequences for individuals whose data is the subject of this breach. Among the possible consequences of the breach, the EROD lists: physical harm, material or non-material damages. Examples of such damages include, among others: discrimination, identity theft or identity fraud, financial losses, infringement of good name, breach of confidentiality of personal data, and significant economic or social harm. There is no doubt that due to the fact that the breach of personal data protection involved information (...) of the victim along with her name and surname, the consequences may primarily manifest as discrimination or infringement of the good name of the individual to whom this data pertains. The media context of the breach of personal data protection in connection with its public disclosure during the press conference is also significant for such an assessment.

At this point, it should be emphasized that the President of the UODO, before initiating administrative proceedings, first approached the National Prosecutor's Office with an inquiry (twice) regarding the disclosure of data in question. In response, he received information that "(...) due to the lack of appropriate grounds, the event described in the notification was not subject to analysis by the data administrator of the National Prosecutor's Office, in the context mentioned in the letter dated August 10, 2023." This means that the Administrator did not conduct any analysis of the data disclosure in question regarding the necessity to fulfill its obligations arising from Article 33(1) and Article 34(1) of Regulation 2016/679, despite the inquiries from the authority regarding the event in question. Therefore, it did not assess whether the event constitutes a breach of personal data protection, nor whether it creates a high risk of infringement of the rights or freedoms of the individual affected, nor whether it is subject to notification to the supervisory authority and whether the individual should be informed about it. Such action, in the opinion of the President of the UODO, indicates an intentionally dismissive approach of the Administrator to the protection of personal data.

It should also be noted that the execution by the Administrator of its obligation arising from Article 33(1) and Article 34(1) of Regulation 2016/679 cannot be conditional upon the materialization of the risk arising from the infringement of the rights or freedoms of individuals whose data is subject to the breach of personal data protection. As stated by the WSA in Warsaw in the judgment of September 22, 2021, issued in case file II SA/Wa 791/21: “[i]t should be emphasized that the possible consequences of the event do not have to materialize. The content of Article 33(1) of Regulation 2016/679 indicates that the mere occurrence of a breach of personal data protection, which is associated with the risk of infringement of the rights or freedoms of individuals, implies the obligation to notify the breach to the relevant supervisory authority, unless it is unlikely that this breach will result in a risk of infringement of the rights or freedoms of individuals” (and the Court similarly ruled in the judgment of July 1, 2022, in case file II SA/Wa 4143/21, as well as in judgments of August 31, 2022, case file II SA/Wa 2993/21, November 15, 2022, case file II SA/Wa 546/22, and April 26, 2023, case file II SA/Wa 1272/22).

At this point, it should be noted that Article 34(1) and (2) of Regulation 2016/679 aims not only to ensure the most effective protection of the fundamental rights or freedoms of data subjects but also to implement the principle of transparency, which arises from Article 5(1)(a) of Regulation 2016/679 (cf. Chomiczewski Witold [in:] GDPR. General Regulation on Data Protection. Commentary. ed. E. Bielak-Jomaa, D. Lubasz, Warsaw 2018). The proper execution of the obligation specified in Article 34 of Regulation 2016/679 should provide the data subject with prompt and transparent information about the breach of their personal data along with a description of the possible consequences of the breach of personal data protection and the measures, which it may take to minimize its potential negative effects.

It should be noted that in order to safeguard the interests of the data subject and in accordance with the law, the Administrator should have provided that person with the best possible opportunity for an independent assessment of the infringement of their rights or freedoms in connection with the incident that occurred. Achieving this goal requires the Administrator to provide the data subject with at least the information listed in Article 34(2) of Regulation 2016/679 in a form that allows the data subject to repeatedly familiarize themselves with the content of the notification addressed to them.

Consequently, it must be stated that the Administrator did not report the personal data breach to the supervisory authority in fulfillment of the obligation under Article 33(1) of Regulation 2016/679 and did not notify the data subject without undue delay about the breach of their data protection, in accordance with Article 34(1) of Regulation 2016/679, which constitutes a violation of these provisions by the Administrator.

In assessing the circumstances of the personal data breach in question, it should be emphasized that when applying Regulation 2016/679, it must be kept in mind that its purpose (expressed in Article 1(2)) is to protect the fundamental rights and freedoms of natural persons, in particular their right to the protection of personal data, and that the protection of natural persons in relation to the processing of personal data is one of the fundamental rights (first sentence of Recital 1 of the preamble). In case of any doubts, for example, regarding the fulfillment of obligations by administrators – not only in situations where a personal data breach has occurred but also when developing technical and organizational security measures to prevent them – these values should be considered primarily.

According to Article 34(4) of Regulation 2016/679, if the administrator has not yet notified the data subject of the personal data breach, the supervisory authority – taking into account the likelihood that the personal data breach will result in a high risk – may require it or may determine that one of the conditions referred to in paragraph 3 has been met. Furthermore, from the content of Article 58(2)(e) of Regulation 2016/679, it follows that each supervisory authority has the corrective power to order the administrator to notify the data subject of the personal data breach.

Considering the above findings and the identified violations of the provisions of Regulation 2016/679, the President of the UODO, exercising the authority granted to him under Article 58(2)(i) of Regulation 2016/679, according to which each supervisory authority has the power to impose, in addition to or instead of other corrective measures provided for in Article 58(2)(a)-(h) and (j) of this Regulation, an

administrative fine under Article 83(4)(a) and (5)(a) of Regulation 2016/679, taking into account the circumstances established in the proceedings, determined that in the case at hand there were grounds justifying the imposition of an administrative fine on the Administrator.

According to Article 83(4)(a) of Regulation 2016/679, violations of the provisions concerning the obligations of the administrator and the processor, referred to in Articles 8, 11, 25-39, and 42 and 43, are subject, according to paragraph 2, to an administrative fine of up to EUR 10,000,000, and in the case of an enterprise – up to 2% of its total annual worldwide turnover from the previous financial year, with the higher amount applying.

According to Article 83(5)(a) of Regulation 2016/679, violations of the provisions concerning the fundamental principles of processing, including the conditions for consent, as referred to in Articles 5, 6, 7, and 9, are subject, according to paragraph 2, to an administrative fine of up to EUR 20,000,000, and in the case of an enterprise – up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount applying.

Moreover, Article 102(1)(1) of the Act of May 10, 2018, on the protection of personal data (hereinafter referred to as the UODO), states that the President of the UODO may impose, by way of a decision, administrative fines of up to PLN 100,000 on: entities in the public finance sector referred to in Article 9(1-12 and 14) of the Act of August 27, 2009, on public finances, research institutes, or the National Bank of Poland. Paragraph 3 of this article further states that the administrative fines referred to, among others, in paragraph 1, are imposed by the President of the UODO based on and under the conditions specified in Article 83 of Regulation 2016/679.

In this case, the administrative fine imposed on the Administrator was for the violation of Article 33(1) and Article 34(1) and (2) of Regulation 2016/679 based on the aforementioned Article 83(4)(a) of Regulation 2016/679, while for the violation of Article 5(1)(a), Article 6(1), and Article 9(1) of Regulation 2016/679 – based on Article 83(5)(a) of that Regulation.

According to the provisions of Article 83(2) of Regulation 2016/679, administrative fines are imposed, depending on the circumstances of each individual case, in addition to or instead of the measures referred to in Article 58(2)(a)-(h) and (j) of Regulation 2016/679. In deciding to impose an administrative fine on the Administrator, the President of the UODO – in accordance with the provisions of Article 83(2)(a)-(k) of Regulation 2016/679 – took into account the following circumstances of the case, which necessitate the application of this type of sanction in the present case and which have a burdening effect on the amount of the imposed administrative fine:

1. Character, weight, and duration of the violation, taking into account the nature, scope, or purpose of the processing in question, the number of affected individuals whose data is concerned, and the extent of the damage suffered by them [Article 83(2)(a) of Regulation 2016/679]. The violation of the provisions of Regulation 2016/679 established in this case is of significant weight and serious nature, as it involved the disclosure of personal data of the affected individual without legal basis by a representative of the National Prosecutor's Office, thus by an entity that should particularly care for the welfare and security of such individuals' data. This entails not only a potential but also a real possibility of these data being used by third parties without the knowledge and consent of the individual concerned, and therefore is associated with the risk of harm, particularly in the form of discrimination, loss of reputation, and loss of control over one's own data. It is worth citing the judgment of the District Court in Warsaw of August 6, 2020, case no. XXV C 2596/19, in which the court indicated that the loss of security constitutes a real non-material damage associated with the obligation to remedy it.

In this case, personal data of the affected individual (including their special categories of data) were disclosed without legal basis to a wide audience by the National Prosecutor's Office, as the press conference during which the violation of personal data protection occurred was broadcast in the media. (...) This means that although the disclosure of data itself should be classified as a one-time event (...).

Furthermore, reporting violations of personal data protection by data controllers constitutes an effective tool contributing to a real improvement in the security of personal data processing. Above all,

based on the information provided by controllers in reports of personal data protection violations, the supervisory authority can assess whether the controller has correctly analyzed the impact of the violation on the rights or freedoms of the individuals whose data is subject to the violation, and consequently, whether there is a high risk of infringement of the rights or freedoms of natural persons and whether there is a need to notify those individuals about the violation of their data. Properly fulfilled obligations by controllers as defined in Article 33(1) and Article 34(1) of Regulation 2016/679 also allow for the limitation of negative effects of personal data protection violations and the elimination or at least reduction of the risk of such violations occurring in the future, as controllers are obliged to take actions that ensure proper protection of personal data through the application of appropriate security measures and monitoring their effectiveness. Reporting a personal data protection violation to the supervisory authority gives it the opportunity for an appropriate response, allowing for the mitigation of the effects of that violation. Conversely, the failure to notify the individuals concerned about the violation of their personal data protection may lead to material or non-material damages, and the likelihood of their occurrence is high. This is clearly indicated by the judgment of the District Court in Warsaw of August 6, 2020, case no. XXV C 2596/19. Furthermore, the Court of Justice of the EU in its ruling of December 14, 2023, in the case of Natsionalna agentsia za prihodite (C-340/21) emphasized that “[a]rt. 82(1) of the GDPR should be interpreted in such a way that the fear of potential misuse of personal data by third parties, which the individual concerned harbors following a violation of this regulation, may in itself constitute ‘non-material damage’ within the meaning of that provision.”

The long duration of the violation is considered an aggravating circumstance by the President of the UODO. From the time the Administrator became aware of the personal data protection violation (the conference took place on (...), the first request from the President of the UODO was on (...)) until the date of issuance of this decision, more than (...) days have passed, during which the risk of infringement of the rights or freedoms of the individual (the individual with the status of an affected person granted in criminal proceedings), in relation to whom such a risk existed at a high level, could have materialized.

The subject violation of personal data protection concerned one individual, who is an affected person. This number of individuals affected by the violation, particularly given the fact that the National Prosecutor's Office processes personal data of many individuals, should be considered small; however, this does not change the overall assessment, i.e., the recognition in the analyzed case of the criterion from Article 83(2)(a) of Regulation 2016/679 as aggravating.

2. Intentional nature of the violation [Article 83(2)(b) of Regulation 2016/679]. According to the Guidelines of the Article 29 Working Party on the application and determination of administrative fines for the purposes of Regulation No. 2016/679 WP253 (adopted on October 3, 2017, approved by the EDPB on May 25, 2018), intent “includes both knowledge and deliberate action, in relation to the characteristics of the prohibited act.” The President of the UODO stated in this case that there was a violation of the provisions of Regulation 2016/679, which relates to the legal bases for processing personal data and the notification obligations of the controller towards the supervisory authority and the individual concerned. In both cases, in the opinion of the President of the UODO, there was an intentional violation. This conclusion was reached after a thorough analysis of the recording of the press conference during which the prosecutor, discussing the case, disclosed the personal data of the affected individual, as he reported the case in an excessively broad manner. The intentional nature of the violation consists, among other things, in the fact that the Administrator did not ensure technical and organizational measures that would prevent such a flagrant violation of rights or... the violation of the rights of the injured party. In the assessment of the President of the UODO, this disclosure was a conscious act, as it was intended to highlight the irregularities that occurred in the proceedings (criticism of the work of the prosecutor's office handling the case and the court that issued the ruling). Furthermore, a person holding such an important position as the Director of the Presidential Office of the National Prosecutor's Office should be aware of their actions. It is also significant for the classification of the violation of the provisions of Regulation 2016/679 as intentional that the National Prosecutor's Office is a special institution due to its position in the hierarchy of prosecutorial units, as

well as due to its role in the prosecution of crimes and their prevention. Its task is to ensure compliance with the law, to safeguard the rule of law, to respect the rights or freedoms of individuals, and individuals who have been granted the status of victims due to their role in the criminal process should be under special protection. The disclosure of special categories of data concerning the injured party, which should also be protected in accordance with the provisions of Article 9(1) of Regulation 2016/679, is also of importance.

Regarding the failure to fulfill the Administrator's obligations arising from Articles 33 and 34 of Regulation 2016/679, the President of the UODO stated that this constituted an intentional act by the Administrator. The Administrator made a conscious decision not to notify the President of the UODO about the breach of personal data protection, nor the person to whom the data pertains. This incident involved the disclosure of personal data of one individual (the person who was granted the status of a victim in the proceedings) without legal basis, among which were special categories of data. Being aware of this, the Administrator nevertheless decided to refrain from reporting the breach to the President of the UODO and notifying the person to whom the data pertains, despite the fact that the President of the UODO had initially informed the Administrator of the obligations imposed on the administrator in connection with the breach of data protection. Ultimately, the mere initiation by the President of the UODO of this proceeding regarding the obligation to report the breach of personal data protection to the supervisory authority and to notify the person whose data is concerned about the breach should have raised at least doubts for the Administrator regarding the correctness of their position.

3. Actions taken by the administrator to minimize the harm suffered by the individuals whose data is concerned [Article 83(2)(c) of Regulation 2016/679]. The Administrator did not demonstrate that they took any actions to minimize the effects of the breach. In fact, during the proceedings, it was indicated (in a letter dated August 29, 2023) that "due to the lack of appropriate grounds, the event described in the notification was not subject to analysis by the data administrator of the National Prosecutor's Office (...)". Therefore, no actions were taken by the Administrator to minimize the effects for the individual, such as a public admission of error, written apologies, or offering compensation, which could have alleviated the harm suffered by the individual affected by the breach. The above indications regarding actions aimed at remedying the effects of the violation of personal rights also apply, in the opinion of the President of the UODO, to actions that could be taken to remedy non-material damage (harm) caused by the breach of personal data protection. From an entity that stands guard over the rule of law, such as the National Prosecutor's Office, it is reasonable to expect appropriate actions in this regard.

4. The degree of cooperation with the supervisory authority to eliminate the breach and mitigate its potential negative effects [Article 83(2)(f) of Regulation 2016/679]. During the explanatory proceedings and in the course of the initiated administrative proceedings, the Administrator responded to the requests of the supervisory authority. However, the fact that responses were provided to the requests of the authority cannot be treated by the President of the UODO as a mitigating factor, but rather as an expression of the fulfillment of the legal obligations resting on the Administrator. The correspondence between the authority and the Administrator did not contribute to the elimination of the breach and the mitigation of its potential negative effects, as the Administrator did not report the breach of personal data protection, nor did they take actions to notify the person whose data is concerned about this breach. Therefore, the authority decided that such conduct by the Administrator constitutes an aggravating factor (increasing the amount of the imposed administrative fine).

5. Categories of personal data to which the breach pertained [Article 83(2)(g) of Regulation 2016/679]. The personal data of the injured party disclosed during the conference on (...) includes information (...), and thus constitutes data subject to special protection under Article 9(1) of Regulation 2016/679. This imposes on the administrators of this data the obligation to treat this information with special care, also due to the possible negative consequences for the individuals to whom this data pertains in the event of its disclosure to unauthorized persons, including discrimination or loss of reputation. In this context, it is worth recalling the EDPB Guidelines 04/2022, which state: "Regarding the requirement to take into

account the categories of personal data to which the breach pertains (Article 83(2)(g) [of Regulation 2016/679]), Regulation 2016/679 clearly indicates the types of data that are subject to special protection, and thus a more stringent response when imposing fines. This applies at least to the types of data covered by Articles 9 and 10 [of Regulation 2016/679] and data not covered by the scope of these articles, the dissemination of which immediately causes harm or...

discomfort of the data subject (e.g., data concerning location, data concerning private communication, national identification numbers, or financial data such as transaction statements or credit card numbers). Generally speaking, the more categories of such data are involved in the breach or the more sensitive the data, the greater weight the supervisory authority may assign to such a factor. The amount of data concerning each data subject is also significant; the larger the scale of the breach of privacy and personal data protection rights.

In determining the amount of the administrative monetary penalty, the President of the UODO found no grounds for considering mitigating circumstances that would affect the final penalty. All the factors listed in Article 83(2)(a)-(j) of Regulation 2016/679, in the authority's assessment, are either aggravating factors or merely neutral. Also, applying the factor mentioned in Article 83(2)(k) of Regulation 2016/679 (which requires consideration of any other aggravating or mitigating factors applicable to the circumstances of the case), no mitigating circumstances were found, only neutral ones (as noted below in point 7).

Other circumstances mentioned in Article 83(2) of Regulation 2016/679, after assessing their impact on the identified breach in this case, were deemed neutral by the President of the UODO, meaning they had neither an aggravating nor a mitigating effect on the amount of the imposed administrative monetary penalty.

1. Degree of responsibility of the controller, taking into account the technical and organizational measures implemented by them under Articles 25 and 32 [Article 83(2)(d) of Regulation 2016/679]. The breach assessed in this proceeding (failure to report the personal data breach to the President of the UODO and failure to notify the data subjects of the personal data breach, as well as breaches of Articles 5(1)(a), 6(1), and 9(1) of Regulation 2016/679) is not related to the technical and organizational measures applied by the Controller.

2. Relevant prior breaches of the provisions of Regulation 2016/679 by the controller [Article 83(2)(e) of Regulation 2016/679]. The President of the UODO found no prior breaches of personal data protection regulations committed by the Controller, and therefore there are no grounds to treat this circumstance as aggravating. Since such a state (compliance with personal data protection regulations) is a natural state resulting from the legal obligations imposed on the Controller, it cannot also have a mitigating effect on the assessment of the breach made by the President of the UODO.

3. The manner in which the supervisory authority became aware of the breach [Article 83(2)(h) of Regulation 2016/679]. The President of the UODO was informed of the occurrence of the personal data breach, i.e., the disclosure of the personal data of the aggrieved party during a press conference, by a third party, as well as from the press conference itself, and not by the Controller. The failure to report the personal data breach to the supervisory authority and to notify the data subject of the personal data breach (thus breaching Articles 33(1) and 34(1) of Regulation 2016/679) is, however, the subject of this decision, and in the circumstances of the considered factual state, the authority accepted that it would not treat this factor as an aggravating circumstance.

4. Compliance with previously applied measures in the same case, as referred to in Article 58(2) of Regulation 2016/679 [Article 83(2)(i) of Regulation 2016/679]. Before issuing this decision, the President of the UODO did not apply any measures mentioned in Article 58(2) of Regulation 2016/679 against the Controller in the examined case, and therefore the Controller had no obligation to take any actions related to their application, which actions, assessed by the President of the UODO, could have an aggravating or mitigating effect on the assessment of the identified breach.

5. Application of approved codes of conduct under Article 40 of Regulation 2016/679 or approved certification mechanisms under Article 42 of Regulation 2016/679 [Article 83(2)(j) of Regulation

2016/679]. The Controller does not apply the instruments referred to in Articles 40 and 42 of Regulation 2016/679. Their adoption, implementation, and application are not, however, as stipulated by the provisions of Regulation 2016/679, mandatory for controllers and processors, which is why the circumstance of their non-application cannot be considered detrimental to the Controller in this case. On the other hand, the circumstance of adopting and applying such instruments as measures guaranteeing a higher than standard level of protection for processed personal data could be taken into account in favor of the Controller.

6. Financial benefits obtained directly or indirectly in connection with the breach or losses avoided [Article 83(2)(k) of Regulation 2016/679]. The President of the UODO found that the Controller did not obtain any financial benefits or avoid such losses in connection with the breach. Therefore, there are no grounds to treat this circumstance as aggravating for the Controller. The establishment of measurable financial benefits resulting from the breach of the provisions of Regulation 2016/679 would need to be assessed very negatively. However, the absence of such benefits for the Controller, as a natural state independent of the breach and its consequences, is a circumstance that, by its very nature, cannot...

to be mitigating for the Administrator. This is confirmed by the same wording of Article 83(2)(k) of Regulation 2016/679, which requires the supervisory authority to give due consideration to the benefits "achieved" – that occurred on the part of the entity committing the violation.

7. Other aggravating or mitigating factors applicable to the circumstances of the case [Article 83(2)(k) of Regulation 2016/679]. The President of the Personal Data Protection Office, comprehensively considering the case, did not note any circumstances other than those described above that could affect the assessment of the violation and the amount of the imposed administrative fine. Taking into account all the circumstances discussed above, the President of the Personal Data Protection Office concluded that the imposition of an administrative fine on the National Prosecutor's Office is necessary and justified given the seriousness, nature, and scope of the violations attributed to the Administrator under Regulation 2016/679. It should be noted that the application of any other corrective measure provided for in Article 58(2) of Regulation 2016/679, particularly merely issuing a reprimand (Article 58(2)(b) of Regulation 2016/679), would not be proportional to the identified irregularities in the processing of personal data and would not guarantee that the Administrator would not commit further negligence in the future.

Referring to the amount of the administrative fine imposed on the Administrator, it should be noted that – given the fact that the Administrator is an entity in the public finance sector, as referred to in Article 9(1) of the Act of August 27, 2009 on Public Finances (Journal of Laws of 2023, item 1270, as amended) – Article 102(1)(1) of the Personal Data Protection Act applies, which limits the amount (to 100,000 PLN) of the administrative fine that can be imposed on an entity in the public finance sector.

Justifying the imposition of an administrative fine of 85,000 PLN on the Administrator, it should be noted that, in the opinion of the President of the Personal Data Protection Office, a lower fine would not fulfill its deterrent function, which is explicitly mentioned in Article 83(1) of Regulation 2016/679; it would not discipline the Administrator to cooperate properly with the President of the Personal Data Protection Office in the future (and as indicated below, the fine imposed in this specific case also has a disciplinary and preventive character). In the opinion of the President of the Personal Data Protection Office, the administrative fine imposed fulfills, in the established circumstances of this case, the functions referred to in Article 83(1) of Regulation 2016/679, i.e., it will be effective, proportional, and deterrent in this individual case.

According to the President of the Personal Data Protection Office, the administrative fine imposed on the National Prosecutor's Office will be effective, as it will lead to a situation in which the Administrator will properly protect personal data from being disclosed without legal grounds. The effectiveness of this fine is therefore equivalent to the guarantee that the National Prosecutor's Office, from the moment this proceeding concludes, will diligently approach the requirements set by the personal data protection regulations. Furthermore, the fine should also ensure that the data Administrator, in the event of another personal data protection violation, will be able to properly assess it and fulfill the obligations

incumbent upon them (Articles 33 and 34 of Regulation 2016/679).

The administrative fine imposed is also proportional to the identified violation of the provisions of Regulation 2016/679, especially regarding its seriousness, the negative impact on the person affected by the personal data protection violation, and the high risk of negative consequences that they may suffer. In the opinion of the President of the Personal Data Protection Office, the administrative fine imposed on the Administrator does not constitute an excessive burden for them, given the statutory limitation on its amount in the case of entities in the public finance sector. In particular, its payment will not affect the National Prosecutor's Office's ability to fulfill its statutory tasks. According to the President of the Personal Data Protection Office, the Administrator should and is able to bear the consequences of their negligence in the area of data protection, hence the imposition of an administrative fine of 85,000 PLN (in words: eighty-five thousand zlotys) is fully justified.

In the opinion of the President of the Personal Data Protection Office, the administrative fine will serve an educational function in these specific circumstances, but also a preventive one; in the opinion of the President of the Personal Data Protection Office, it will indicate both to the National Prosecutor's Office and to other data administrators the seriousness of neglecting the obligations of administrators related to the occurrence of personal data protection violations, as well as the responsibility of state authorities for unlawful actions taken by them using their power and the possibilities that this power provides.

Thus, the administrative fine imposed fulfills, in the established circumstances of this case, the criteria referred to in Article 83(1) of Regulation 2016/679, due to the seriousness of the identified violations in the context of the fundamental requirements and principles of Regulation 2016/679 – especially the principles of lawfulness, fairness, and transparency expressed in Article 5(1)(a) of Regulation 2016/679.

In this factual and legal state, the President of the Personal Data Protection Office decided as stated in the operative part.

[1] Guidelines of the European Data Protection Board (EDPB) No. 9/2022, adopted on March 28, 2023, regarding the reporting of personal data breaches in accordance with GDPR; available at: <https://uodo.gov.pl/pl/537/2902>.

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